

Text 4

The miracle of the Chesapeake Bay lies not in its depths, but in the complexity of its natural construction, the interaction of fresh and saline waters, and the mix of land and water. The shallows provide homes for hundreds of species while storing floodwaters, filtering pollutants from water, and protecting nearby communities from potentially destructive storm surges.

All this was put at great risk late last month, when the U.S. Supreme Court issued a ruling in an Idaho case that provides the U.S. Environmental Protection Agency (EPA) far less authority to regulate wetlands and waterways. Specifically, a 5-4 majority decided that wetlands protected by the EPA under its Clean Water Act authority must have a “continuous surface connection” to bodies of water. This narrowing of the regulatory scope was a victory for builders, mining operators and other commercial interests often at odds with environmental rules. And it carries “significant repercussions for water quality and flood control throughout the United States,” as Justice Brett Kavanaugh observed.

In Maryland, the good news is that there are many state laws in place that provide wetlands protections. But that’s a very shortsighted view, particularly when it comes to the Chesapeake Bay. The reality is that water, and the pollutants that so often come with it, don’t respect state boundaries. The Chesapeake draws from a 64,000-square-mile watershed that extends into Virginia, Pennsylvania, New York, West Virginia, the District of Columbia and Delaware. Will those jurisdictions extend the same protections now denied under *Sackett v. EPA*? Perhaps some, but all? That seems unlikely.

It is too easy, and misleading, to see such court rulings as merely standing up for the rights of land owners when the consequences can be so dire for their neighbors. And it’s a reminder that the EPA’s involvement in the Chesapeake Bay Program has long been crucial as the means to transcend the influence of deep-pocketed special interests in neighboring states. Pennsylvania farmers, to use one telling example, aren’t thinking about next year’s blue crab harvest in Maryland when they decide whether to spread animal waste on their fields, yet the runoff into nearby creeks can have enormous impact downstream.

And so we would call on state lawmakers from Richmond to Albany to consider reviewing their own wetlands protections and see for themselves the enormous stakes involved. We can offer them a visit to Blackwater National Wildlife Refuge in Dorchester County where bald eagles fly over tidal marshes so shallow you could not paddle a boat across them but teeming with aquatic life. It’s worth the scenic drive.